

KMVTECH EDUCATION**CEL1 · Module 1****Principles**

Lesson: Environmental principles

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Environmental law is built on foundational principles that guide legislation, policy and adjudication: sustainable development, precaution, prevention, polluter-pays, public participation, inter-generational equity and the common but differentiated responsibilities principle at the international level.

Sustainable development seeks to integrate economic, social and environmental objectives so that present needs are met without compromising future generations. The precautionary principle justifies action in the face of scientific uncertainty about serious or irreversible harm.

Polluter-pays allocates the cost of pollution to those who cause it. Public participation and access to information and justice are both procedural rights and instruments of better decisions.

- These principles appear in the Rio Declaration, African instruments and Uganda's constitutional and statutory framework.

2. DETAILED RULES AND APPLICATION

Example: a large infrastructure project near a wetland engages precaution, prevention, public participation and inter-generational equity even before detailed statutory duties are applied.

Identify the governing principle(s) first; they colour the interpretation of every specific rule that follows.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Article 39 of the Uganda Constitution (right to a clean and healthy environment) and the National Environment Act embed these principles. Courts have used them to expand standing and to craft innovative remedies.

Exam trap: treating principles as mere rhetoric with no legal bite, or applying precaution as a total ban rather than a risk-management tool.

Method: name the relevant principle(s) → locate them in Constitution / statute / treaty → show how they shape the duty or the remedy on the facts.

Principles are the grammar of the entire environmental-law course.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. List five core environmental principles.
2. What does sustainable development integrate?
3. When does the precautionary principle apply?
4. What does polluter-pays require?
5. Where is the right to a clean and healthy environment in the Constitution?
6. Why start analysis with principles?

Exam tip: Principles first; they shape every later duty.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.